

HB 1582 -- PROPERTY TAXES

SPONSOR: Caton

This bill provides that, if any third-party documents were used by the assessor in the computation of assessed value, those documents must be disclosed to the record owner on the assessor's website.

The bill provides that, whenever an assessor notifies a record owner of an increase in assessed value, that notification must include that information related to accessing the specific assessment method, third-party documentation, and the basis of the computation is available online. This notification must also include the assessor's contact information.

Current law provides that, in any appeal in which an assessor fails to provide evidence of a physical inspection required by law, the taxpayer must prevail as a matter of law. This bill also provides that the assessor's increased assessed valuation will be void in its entirety and the previous assessed valuation will be applied.

Current law authorizes any first class charter county or city not within a county to require, by ordinance or charter, the reimbursement of just and reasonable appraisal costs, attorney fees, and court costs resulting from hearings before the State Tax Commission for taxpayer appeals of property assessments. This bill requires reimbursements of all appraisal costs and court costs. This bill also increases the maximum amount of fees to be reimbursed from \$1,000 to \$5,000 for residential property appeals, and from \$4,000 to \$5,000 for utility, industrial railroad, or other subclass three property appeals.

Current law requires a taxpayer to file a written protest of property taxes with the collector at the same time such taxpayer makes full payment of such taxes. This bill provides that such taxpayer must file a written statement with the collector before the delinquency date, rather than at the same time such taxpayer makes full payment of such taxes.

This bill also provides that the interest due to a taxpayer whose protested taxes were distributed to a taxing authority must be calculated from the date that the protested taxes were distributed to the taxing authority through the date of the refund.

Any taxpayer determined by a circuit court or the State Tax Commission to be entitled to a refund of property taxes must receive such refund from the collector within 30 days of the final determination of the refund amount by the circuit court or State Tax Commission. If such refund is not issued within 30 days, the

taxpayer will be entitled to interest on the refund as calculated under current law.

This bill is similar to SB 599 (2025).